

NON-DISCLOSURE AGREEMENT (NDA)

Effective Date: October 01, 2026 | Parties: Jane Doe (Service Provider), TechNova Inc. (Client)

NON-DISCLOSURE AGREEMENT (NDA)

This Non-Disclosure Agreement (NDA) (the "Agreement") is entered into and made effective as of **October 01, 2026** (the "Effective Date"), by and between:

- **Party 1:** Jane Doe (Service Provider)
- **Party 2:** TechNova Inc. (Client)

(Each individually referred to as a "Party" and collectively as the "Parties").

RECITALS

WHEREAS, the Parties desire to enter into this Non-Disclosure Agreement (NDA) to define their respective rights, duties, and covenants in accordance with mutual commercial understanding; and

WHEREAS, the Parties agree to be legally bound by the terms, covenants, representations, and warranties set forth herein;

NOW, THEREFORE, in consideration of the mutual covenants and valuable considerations herein contained, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

SECTION 1. SCOPE AND PURPOSE

1.1 The primary purpose of this Non-Disclosure Agreement (NDA) is to establish the formal arrangement between Jane Doe (Service Provider) and TechNova Inc. (Client) pursuant to the mutual objectives of both Parties.

1.2 Both Parties agree to act in good faith and carry out their respective responsibilities in a timely and professional manner.

SECTION 2. KEY TERMS AND STIPULATED CONDITIONS

The following covenants and operating conditions have been expressly agreed upon by the Parties:

- **Clause 1 (Specific Condition):** Payment within 30 days.
- **Clause 2 (Specific Condition):** Confidentiality must be maintained for 3 years.
- **Clause 3 (Specific Condition):** Either party may terminate with 15 days notice.
- **Clause 4 (Specific Condition):** Governing law of Delaware.

SECTION 3. TERM AND TERMINATION

3.1 ****Term:**** This Agreement shall commence on the Effective Date (October 01, 2026) and shall remain in full force and effect until terminated in accordance with the provisions herein or upon completion of all obligations.

3.2 ****Termination for Cause:**** Either Party may terminate this Agreement immediately upon written notice if the other Party materially breaches any provision of this Agreement and fails to cure such breach within fifteen (15) days of receipt of written notice.

3.3 ****Effect of Termination:**** Upon termination, all accrued payment obligations and surviving confidentiality terms shall remain binding upon the Parties.

SECTION 4. CONFIDENTIALITY AND NON-DISCLOSURE

4.1 The Parties agree that all non-public, proprietary, or business information disclosed by one Party to the other in connection with this Agreement shall be treated as strictly confidential.

4.2 Neither Party shall disclose or disseminate Confidential Information to any third party without prior written consent from the disclosing Party, except as required by applicable law or court order.

SECTION 5. REPRESENTATIONS AND WARRANTIES

5.1 Each Party represents and warrants that it has full legal power, authority, and capacity to enter into this Agreement and perform its obligations hereunder.

5.2 The execution, delivery, and performance of this Agreement does not violate any other contract, court order, or legal restriction binding on either Party.

SECTION 6. INDEMNIFICATION AND LIMITATION OF LIABILITY

6.1 Each Party shall defend, indemnify, and hold harmless the other Party, its affiliates, officers, and employees from and against any third-party claims, liabilities, damages, and reasonable legal expenses arising out of gross negligence or willful misconduct.

6.2 To the maximum extent permitted by law, neither Party shall be liable for any indirect, incidental, consequential, or punitive damages arising out of this Agreement.

SECTION 7. GENERAL PROVISIONS

7.1 ****Entire Agreement:**** This Agreement constitutes the sole and entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior negotiations, understandings, and agreements.

7.2 ****Amendments:**** No modification or amendment to this Agreement shall be binding unless executed in writing and signed by authorized representatives of both Parties.

7.3 ****Severability:**** If any provision of this Agreement is held to be invalid or unenforceable, such holding shall not affect the validity or enforceability of the remaining provisions.

7.4 ****Governing Law & Jurisdiction:**** This Agreement shall be governed by and construed in accordance with the laws applicable to the governing jurisdiction of the Parties, without regard to conflicts of law principles.

IN WITNESS WHEREOF

The Parties hereto have caused this Non-Disclosure Agreement (NDA) to be duly executed by their authorized representatives as of the Effective Date written above.

****FOR: Jane Doe (Service Provider)****

By: _____

Name: _____

Title: _____

Date: _____

****FOR: TechNova Inc. (Client)****

By: _____

Name: _____

Title: _____

Date: _____

DISCLAIMER & LEGAL NOTICE

This document is an AI-assisted draft created for template and informational purposes only. It does not constitute formal legal advice and does not create an attorney-client relationship. Laws and legal requirements vary significantly across jurisdictions. All parties should have this document reviewed, customized, and approved by a qualified licensed attorney in their respective jurisdiction prior to execution.